

STATE OF NEW YORK

8412--C

2025-2026 Regular Sessions

IN ASSEMBLY

May 14, 2025

Introduced by M. of A. BICHOTTE HERMELYN -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public housing law, in relation to succession rights for New York city housing authority properties

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public housing law is amended by adding a new section 402-h to read as follows:

§ 402-h. Succession rights. 1. The New York city housing authority shall adopt policies and procedures allowing individuals to claim succession rights to public housing units in properties owned and operated by the New York city housing authority upon the permanent departure or death of the tenant of record from the unit.

2. The New York city housing authority shall establish written policies and procedures for asserting succession rights in compliance with the requirements of applicable federal, state, and local laws, regulations, and guidance. Nothing in this section shall limit, prevent, or prohibit the New York housing authority from maintaining and updating such written policies and procedures to comply with the requirements of applicable federal, state, and local laws, regulations, and guidance. Such written policies and procedures shall also be consistent with the New York city housing authority's occupancy standards. Such policies and procedures shall include, but not be limited to:

(a) eligibility requirements for lease succession;

(b) relocation requirements, if any, arising out of lease succession;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (c) the requirement to pay use and occupancy during the pendency of
2 succession rights proceedings; and

3 (d) the right to an administrative grievance of the New York city
4 housing authority's denial of succession rights, provided that the
5 grievant is up to date in use and occupancy.

6 3. The New York city housing authority shall issue notice in writing
7 of substantive changes to its succession rights policies and procedures
8 at least thirty days prior to implementing those changes, and shall
9 afford an opportunity to provide written comments with respect to the
10 proposed changes. The New York city housing authority shall consider
11 written comments prior to implementation of the proposed changes.

12 § 2. This act shall take effect immediately.